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Estate of James E Lough

26PR000055

PETITION FOR INSTRUCTION TO REVOKE TRUST BY ITS OWN TERMS

TENTATIVE RULING: The matter is CONTINUED to August 27, 2026, at 8:30 a.m. in Dept. B to allow Petitioner to provide sufficient notice of the Petition. (Prob. Code, § 17203 [30 days].)

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Red Target, LLC dba SCJ Commercial Financial Services v. Kiersten Firquain

23CV000301

DEFENDANT KIERSTEN FIRQUAIN’S MOTION TO STRIKE THE ENTIRETY OF PLAINTIFF’S FIRST AMENDED COMPLAINT

APPEARANCE REQUIRED: The motion to strike the First Amended Complaint is DENIED. The Court is inclined to not exercise its discretion to dismiss the action for Plaintiff’s failure to prosecute. However, as Plaintiff failed to oppose the Motion, the Court orders the parties to appear in order that it may hear from Plaintiff regarding its commitment to pursuing its claims.

Defendant Kiersten Firquain moves, pursuant to California Code of Civil Procedure §§ 435, subdivision (b)(1) and 436, subdivision (b), for an Order striking, in its entirety, Plaintiff’s First Amended Complaint filed on or about April 4, 2026 (FAC).² Firquain also moves for an order dismissing the action pursuant to Section 583.420, subdivision (a)(2)(A).

Firquain asks the Court to strike the FAC on grounds that the Court issued an order on October 18, 2023, compelling Plaintiff to file the pleading “within 30 days” of the order. (See Support Memo at 3:6-9.) The subject Order, entered on stipulation of the parties, states “Plaintiff shall file its First Amended Complaint within thirty (30) days after the date of the Court’s Order in connection with this Stipulation . . .” (October 18, 2023, Order at 2:10-11.) The Order does not, however, provide any consequence for non-compliance. It appears that the parties did not contemplate non-compliance when entering into the stipulation.

The Court notes that “[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed . . .” (Code Civ. Proc., § 472, subd. (a).) As of the filing of the FAC, no answer, demurrer, or motion to strike the original Complaint had been filed. Nothing in the parties Stipulation suggests a waiver, by Plaintiff, of its rights pursuant to Code of Civil Procedure section 472.

² All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.